Javed Hussain vs State Of Nct Of Delhi & Anr on 1 December, 2022

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3160/2022 & CRL.M.B. 1296/2022

JAVED HUSSAIN ..... Petitioner
Through: Mr. Amit Chadha & Mr. V Padora, Advocates

versus

STATE OF NCT OF DELHI & ANR. ..... Respon
Through: Mr. Narinder Jit Singh Bajwa, AP the State with Mr. Shivesh Kaus Advocate with SI Arun, PS Model Town
Mr. Dushyant K Mahant, Advocate complainant

CORAM:
HON'BLE MR. JUSTICE ANISH DAYAL
ORDER

% 01.12.2022

1. Status report has been filed. Learned APP for the State submits that charge sheet has been filed but some of the material witnesses remain unexamined which is refuted by the learned counsel for the petitioner.

2. The instant case relates to FIR No.371/2017 dated 06th September, 2017 registered at PS Model Town wherein charges were framed under Sections 406/420/468/471/120B/34 IPC relating to allegations of fraud regarding bogus sale of properties made to complainant as well as forgery of title documents. The petitioner is stated to be in custody since 14th October, 2017.

3. Learned counsel for the petitioner will substantiate his contentions relating to progress of trial qua the material witnesses by placing those facts by way of an affidavit, before the next date of hearing. Response to the status report along with whatever documents relied upon by the learned counsel be filed well before the next date of hearing with copies to opposite counsels.

4. Learned counsel for the complainant, who has joined the proceedings through VC, states that co-accused Abbas Hussain has already been enlarged on bail way back in December 2017 but the complainant has moved an application for cancellation of his bail.

5. List on 15th December, 2022.

6. In the meantime, latest nominal roll of the petitioner be requisitioned from the concerned Jail Superintendent well before the next date of hearing.

7. Order be uploaded on website of this Court.

ANISH DAYAL, J DECEMBER 1, 2022/sm